

Report

**Indigenous and local
knowledge dialogue workshop**

for the

scoping report

of the

**IPBES assessment of
business and biodiversity**

Online, 22 and 24 November 2021

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Disclaimer:

The text in section 3 represents an attempt to reflect solely the views and contributions of the participants in the dialogue. As such, it does not represent the views of IPBES or UNESCO or reflect upon their official positions.

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1. Introduction

1.1. This report

The Intergovernmental Platform on Biodiversity and Ecosystem Services (IPBES) is developing a methodological assessment of the *impact and dependence of business on biodiversity and nature's contributions to people* (hereafter the “business and biodiversity assessment”). As part of this process, a scoping report is being developed to provide a framework that will guide the future development of the assessment. A draft of this scoping report was made available for external review between 1 November and 12 December 2021. To support the participation of Indigenous Peoples and local communities (IPLCs) in reviewing the draft, IPBES organized an online Indigenous and local knowledge dialogue on 22 and 24 November 2021.

This report aims to provide a written record of the dialogue workshop, which can be a resource for authors of the scoping report and the IPBES Multidisciplinary Expert Panel (MEP), and eventually authors of the business and biodiversity assessment itself. The report can also be a resource for all dialogue workshop participants who may wish to review and contribute to the work of the assessment moving forward, and for others interested in the subject of IPLCs and business and biodiversity.

The report is not intended to be comprehensive or give final resolution to the many interesting discussions and debates that took place during the workshop. Instead, it is intended as a written record of the discussions, and this conversation will continue to evolve over the coming years. For this reason, both points of agreement and diverging views are presented for further attention and discussion.

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The agenda and participants list for the dialogue are provided in annexes 1 and 3.

1.2. Aims of the ILK dialogue workshop

The aim of the dialogue workshop was to engage IPLCs in critically reviewing the draft scoping report and to provide feedback to scoping report authors and MEP regarding strengths, gaps and additional sources of information.

Additional aims included sharing knowledge between IPLC participants and authors of the scoping about business and its impacts on IPLC economies, and exploring how the final assessment could be utilized by IPLCs.

1.3. Process

Authors of the draft scoping report attended the workshop, to discuss with IPLCs and to gain insights into IPLC concerns and priorities regarding the assessment.

Comments made by IPLC participants during the workshop were also entered into the formal review template, which was sent to participants for edits and approval as part of the process of Free, Prior and Informed Consent (FPIC). Following edits by participants, the comments were submitted, for the attention of the scoping report authors as they further develop the scoping report.

A report (this report) was also developed to serve as a resource for scoping report authors and future authors of the business and biodiversity assessment. The report was also sent to participants for review and approval before publishing.

1.4. Dates, times and languages

There were two sessions of the workshop to facilitate participation from different time zones:

- Monday, 22 November 2021, 6pm-9pm CET (*in English and Spanish*)
- Wednesday, 24 November 2021, 8am-11am CET (*in English and French*)

The full agenda for the workshop is given in annex 1.

1.5. Participants

Participants of the dialogue workshop included:

- Members of Indigenous Peoples and local communities;
- Authors of the scoping report; and
- Members of the IPBES secretariat, task force on ILK and technical support unit for ILK.

1.6. Free, Prior and Informed Consent

FPIC principles are central to IPBES work with IPLCs, and a series of ethical principles and have been developed to ensure that FPIC is followed in IPBES activities. These principles were agreed upon by the participants of the dialogue, and will be followed by Indigenous and local community participants, scoping report authors and the IPBES secretariat. The full agreed-upon text and the names of those agreeing to these principles are provided in annexes 2 and 3 to this report.

2. Background

2.1. What is IPBES?

IPBES, the Intergovernmental Science-Policy Platform on Biodiversity and Ecosystem Services, is an independent intergovernmental body, established by member States in 2012. It provides policymakers with objective assessments about the state of knowledge regarding the planet's biodiversity, ecosystems and the benefits they provide to people, as well as the tools and methods to protect and sustainably use these vital natural assets. Its mission is to strengthen knowledge foundations for better policy, for the conservation and sustainable use of biodiversity, long-term human well-being and sustainable development. See www.ipbes.net for more information.

2.2. IPBES and ILK

Since its inception in 2012, IPBES has recognized that IPLCs possess detailed knowledge on biodiversity and ecosystem trends. In its first work programme (2014-2018), IPBES built on this recognition through deliverable 1 (c): *Procedures, approaches and participatory processes for working with Indigenous and local knowledge systems*. The IPBES rolling work programme up to 2030 includes objective 3 (b) *Enhanced recognition of and work with Indigenous and local knowledge systems*, which aims to further this work.

In recognition of the importance of ILK to the conservation and sustainable use of ecosystems as a cross-cutting issue relevant to all of its activities, the IPBES Plenary established a [task force on Indigenous and local knowledge systems](#) and agreed on [terms of reference](#) guiding its operations towards implementing this deliverable. IPBES' work with IPLCs and on ILK has also been supported by a technical support unit (TSU) for ILK, hosted by UNESCO.

Progress was made in the development of approaches and methodologies for working with ILK during previous IPBES assessments (Pollination, Pollinators and Food Production, Land Degradation and Restoration, and four Regional Assessments and a Global Assessment of Biodiversity and Ecosystem Services).

This progress led to a series of key deliverables from the task force on ILK:

- The development of the "[approach to recognizing and working with ILK in IPBES](#)" (the "approach to ILK"), which sets out principles and approaches for IPBES work with ILK. It was formally approved by the IPBES Plenary at its fifth session in 2017;

- Development of a “methodological guidance for recognizing and working with ILK in IPBES” (the “methodological guidance”), which is maintained as a living document that aims to provide further detail and practical guidelines on how to work with ILK; and
- Development of a “[participatory mechanism](#)”, a series of activities and pathways to facilitate the participation of IPLCs in IPBES assessments and other activities.

As part of the implementation of the approach to ILK, the methodological guidance and the participatory mechanism, [ILK dialogue workshops](#) are organized at key points during the assessment cycle. The dialogue for the scoping report of the business and biodiversity assessment was held within this framework.

You can read more about IPBES work with Ilk and IPLCs [here](#).

2.3. The business and biodiversity assessment

2.3.1. Timelines

The scoping for the business and biodiversity assessment was conducted in 2021. Following approval at the 9th IPBES Plenary session in 2022, the assessment will start in 2023 and run for two years.

2.3.2. Objectives of the assessment

The business and biodiversity assessment will be a methodological assessment, which means that it assesses the availability and use of methods in relation to a specific topic.

The objective of the business and biodiversity assessment will be to strengthen the knowledge base to support efforts by business to achieve the 2050 Vision for Biodiversity and the Sustainable Development Goals and to inform other biodiversity-related multilateral environmental agreements, processes and efforts.

The assessment report will:

- Categorize the dependencies and impacts of business on biodiversity and nature’s contributions to people, which include ecosystem services and other analogous concepts;
- Assess criteria and indicators for measuring these dependencies and impacts; and
- Assess options for actions by businesses and by others, including governments, finance and civil society that interact with business.

IPBES recognizes that the participation of IPLCs is essential to the process of developing the IPBES business and biodiversity assessment. IPLCs are often on the frontlines of environmental and social impacts from business, while at the same time they may be developing their own visions and approaches to generating livelihoods and economies for their communities, often in sustainable, culturally appropriate ways.

3. Recommendations and learning from the dialogue¹

Over the course of the dialogue, IPLC participants made a series of comments and recommendations for the draft scoping report of the assessment, for the consideration of scoping report authors and future authors of the assessment itself.

3.1. Overarching issues

3.1.1. Disaggregating “civil society”

A participant from Mexico noted that when using the term “civil society”, it is important to describe the sectors within this term, as different groups in civil society have different roles in the business-biodiversity relationship and experience diverse impacts, for example IPLCs, peasants and women. The assessment could therefore find diverse “available methods” to assess the diverse relationships between these different groups, biodiversity and business.

A participant from the Philippines recommended that to give the assessment more depth, the term “civil society” as a whole should be broken down and disaggregated, as implications for IPLCs would be distinct from youth and women, and also from NGOs or other stakeholders. For example, youth and their futures are related to business, and impacts on women would be important to disaggregate.

A participant from Cameroon also noted that distinguishing different sectors of civil society is key. In Cameroon this is an important issue, as there was a long process to distinguish civil society organizations, Indigenous Peoples’ organizations and women’s and youth organizations. In the past, Indigenous Peoples were often considered in a block with civil society, which meant there was little attention to the rights of Indigenous Peoples, and other civil society groups tended to monopolize attention and action. Now, however, Indigenous Peoples are recognized as a distinct group and can be a focus of attention when action is needed.

A participant from Canada noted that Indigenous Peoples are not mentioned in the draft scoping report, aside from a brief paragraph on the approach for the assessment. She noted that often when IPLCs are assumed to be included, their concepts and methods in fact become invisible due

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to power hierarchies. In line with the United Nations Declaration on Indigenous Peoples (UNDRIP), and in light of global issues, particularly around mining, Indigenous Peoples need special attention rather than being assumed to be included in references to society at large. She also noted that there is a need to be wary of and critically analyze terminology coming from the field of economics and neoliberal assumptions in the report, e.g., the term “consumer”, because there are many countries where IPLCs are not entitled to consume, as they are dispossessed from their land.

The participant from Canada also noted that gender issues and gender-based social impact assessments could be important to consider and highlight. Canada’s Missing and Murdered Indigenous Women’s Enquiry report made a significant recommendation regarding these methods, which is now being implemented through Environment and Climate Change Canada’s Strategic Assessment of Climate Change process. One of the great sources of concern is the link between business impacts on biodiversity and impacts on Indigenous Peoples, particularly women.

3.1.2. Methods for the business and biodiversity assessment

A participant from Mexico highlighted that, as well as asking IPLCs to review drafts of documents and participate in workshops, IPBES should also work with IPLCs to build frameworks, tools and methods that can be used in its assessments.

A participant from Canada noted that being included in processes such as the business and biodiversity assessment can also pose a risk to Indigenous Peoples. It is therefore important that IPLCs have an impact on the framework of the assessment itself, rather than ILK being integrated into another framework. A recommended resource is Johnson et al. 2016. *Weaving Indigenous and sustainability sciences to diversify our methods*. Sustainability Science, 11: 1-11. <https://link.springer.com/article/10.1007/s11625-015-0349-x>

3.2. Measuring business impacts on nature and IPLCs

3.2.1. Measuring impacts

A participant from Mexico explained that methods are needed to demonstrate and highlight the full range of impacts on biodiversity and IPLCs from business, and their scale. For example, the persecution of Indigenous and environmental defenders is a serious issue, which should be considered and should be accounted for in such methods. The assessment could consider the reports of Global Witness about Indigenous and environmental defenders and the persecution and violence against them.

A participant from Cameroon noted that, when discussing the dependency and impacts of business on nature, the assessment needs to measure impacts on social systems as well as

biodiversity. For example, there are two large Indigenous groups in Cameroon, living in the savannah and forest. On the savannah there is large-scale intensive agriculture and animal rearing, and Indigenous Peoples in the savannah are victims of farmland takeovers, either for intensive animal farming, ranching or industrial farming. They may have been working their land for 50 years, but companies can take the land, which can sometimes be more than hundreds of hectares. Laws to prevent this exist, but are often not enforced, allowing expropriation to become usual practice, which impacts the rights of Indigenous Peoples and their rights to have access to land. The activities also often have serious negative impacts on nature, destroying biodiversity and reducing the quality of land. Meanwhile, forest areas in the Congo Basin suffer from massive deforestation due to the logging industry. Indigenous Peoples, who have lived there for a long time and had livelihoods there as hunter gatherers, are now under threat. Another industry with severe impacts is mining. Cameroon has diamonds, bauxite, manganese, copper and gold, and the forest is being depleted because of the mining industry, which is mostly run by foreign investors. The mines are destroying biodiversity and the way of life and cultures of local people. This can be seen as a major violation of Indigenous Peoples' rights. All these interactions should be considered within the assessment.

A participant from Canada noted that the scoping report was framed very scientifically, including language around indicators and metrics. It can appear that the aim of the assessment is to measure the impacts of business on biodiversity for business's sake, without connecting it to broader socio-ecological issues. There is a web of social and rights issues that are currently missing from the framing of the document, e.g., how does a business impact people and their wellbeing when business and people are relying on the same resources? Potential conflicts also need to be taken into consideration. A recommended resource is a book that discusses the issue of Indigenous Peoples and wind farms: <https://www.ubcpres.ca/Indigenous-encounters-with-neoliberalism>. Consideration of cross-border impacts and multinationals will also be very important.

A participant from Mexico highlighted that many IPLCs completely depend on nature for survival. For many IPLCs, nature is not a commodity and it is not something they use only occasionally. All aspects of IPLC ways of life and health can therefore be affected by business, because many IPLCs cannot escape from the deterioration of nature. For example, mining of mercury in Latin America directly affects many communities. For any type of business, communities will be affected and eventually the business itself will be affected as they, too, depend on nature.

A participant from Uganda noted that local impacts from business can include governments or investors claiming ownership of land, and as a result Indigenous Peoples are prevented from utilizing the space, which is a significant negative impact on local people.

A participant from Australia also noted that measurement of impacts should expand to include impacts on society, especially on IPLCs who are closely linked to biodiversity.

A participant from Nepal explained that there is a need for methodologies and regulatory mechanisms to assess the relationship of ILK and IPLCs with nature, biodiversity and business, with attention to intersectionality within IPLCs in terms of women and youth. Business and its impacts on biodiversity can bring significant challenges for Indigenous Peoples, local communities, women, youth and elders, including a risk that many Indigenous Peoples will become environmental refugees in the coming years. IPLCs may relocate or be forcefully displaced from their areas or territories, as their lands are often rich in biodiversity and other resources that attract business. Local or national development scenarios indicate that developments such as wildlife conservation, protected areas, hotel safaris, smart cities, mining, hydropower dams and other developments are not taking account of IPLCs, ILK and their relationship with biodiversity and ecosystems. National policies related to biodiversity and ecosystems, including urban biodiversity, sciences, and relevant financial institutions, investment banks and business agencies are also not considering the values of ILK or its diversity, including Indigenous sciences, innovations, practices and contribution of IPLCs, including women and elders. Therefore, clear assessment methods and mechanisms are needed to frame the negative and positive impacts to IPLCs and ILK holders, including ensuring self-determination of Indigenous Peoples, FPIC and full effective participation at all levels. Attention is also needed on research and policies on Indigenous sciences, ILK, and innovations around biodiversity and ecosystem services. Socio-economic considerations and cultural impact assessment processes need to be incorporated into the business and biodiversity assessment, which should also use methods to assess Indigenous values, views, principles, philosophies and practices.

A participant from Mexico recommended that instead of the terms “dependencies” and “impacts”, the scoping report could consider using “relationships”, which is a broader concept that also includes other interactions between people, business and biodiversity.

3.2.2. Resources on social and cultural impact assessments

A participant from Mexico recommended that the assessment could consider some of the methods of social impact assessments, which address impacts on biodiversity and nature’s contributions to people. There are examples of this, including for mining and wind farms. The scoping report could explore the concept of “bioeconomy”. There are also many publications and standards by international banking and some governments regarding business and biodiversity, such as the International Finance Corporation’s performance standards.²

²https://www.ifc.org/wps/wcm/connect/topics_ext_content/ifc_external_corporate_site/sustainability-at-ifc/policies-standards/performance-standards/ps6

A participant from Cameroon noted that the concept of One Health, including human, environmental and animal health, could be integrated in this assessment process to assess the connections between business, biodiversity, society and health.

A participant from the Philippines noted that some methodologies are already in place for measuring impacts of business on biodiversity and people: the High Conservation Value Approach³ aims to assess interventions in forests or other landscapes to make sure those with high conservation values are not impacted; due diligence procedures for supply chains, e.g., for forest commodities imported into the EU; and voluntary certification for business sectors and products (the Forest Peoples Program has also done an assessment of voluntary certification). Also, the CBD developed the Akwé: Kon Guidelines⁴ for activities impacting on knowledge and territories of Indigenous Peoples. Finally, an expert meeting on Indigenous Peoples, business, autonomy and the human rights principles of due diligence, including FPIC, was organised by the UNPFII on 6-10 December 2021.⁵

3.2.3. IPLC methods

A participant from Mexico highlighted that tools and methods are very important, yet people tend to overlook their origins. The assessment needs to work with IPLCs to highlight their own frameworks, tools and methods for assessing impacts. These are available and they have been successful, e.g., for monitoring or disaster risk reduction. There are two different approaches; on one hand science, which is always data driven, and on the other hand approaches by IPLCs, who are more connected to environmental ethics and spirituality, but this is difficult to account for as it cannot be measured. IPLC cosmologies and relations to nature therefore tend to be overlooked.

A participant from Canada noted that Indigenous methodologies exist and should be included in the assessment.

A participant from Mexico recommended that the assessment should include IPLC evaluation methods, which are culturally appropriate. There is also need for dialogue between different knowledge systems. It will be important to show the importance of different valuation methods to assess impacts on nature and society from business.

³ <https://hcvnetwork.org/>

⁴ <https://www.cbd.int/doc/publications/akwe-brochure-en.pdf>

⁵ <https://www.un.org/development/desa/Indigenouspeoples/news/2021/12/expert-meeting-on-Indigenous-peoples-business-autonomy-and-the-human-rights-principles-of-due-diligence-including-free-prior-and-informed-consent/>

3.3. Ways forward

3.3.1. Relationships between IPLCs, business and biodiversity

A participant from Canada explained that it will be very important to engage with Indigenous economies and Indigenous models of economy. It is often assumed that Indigenous Peoples are anti-development or anti-business, which is, however, often not the case. Many Indigenous Peoples are not anti-business, but have a relationship with biodiversity that involves ways to depend on biodiversity without compromising ecological integrity for the present and future generations. This is especially the case when those dependencies involve medicines and food. It is important to highlight this when looking at different models of economy.

A participant from Mexico highlighted that it is often assumed that IPLCs do not want money or business. She noted that this is often not the case, and IPLCs can partner with business if those businesses operate with responsibility, accountability and respect for nature. Biocultural community protocols designed by communities can be key tools for this, as in such protocols, communities establish rules for businesses that wish to move into their lands. This should also be explored in the assessment. IPLCs are not necessarily against business – they often want to develop their own businesses, but they wish for this to be done well, using their own frameworks and with responsibility. The assessment could also address communitarian models of building economies, and Indigenous ideas about what an economy can be. In Oaxaca, there is a group of communities with a strong economy, which the World Bank uses as a good example of a local economy, cultural conservation and reducing migration to the USA or big cities in Mexico. These communities in Oaxaca develop an economy based on cultural heritage and natural resources, using the concept of “bioeconomy”, which aims to find conciliation between business, biodiversity and culture, and to allow communities to engage in business in a positive way.⁶ The assessment could explore this new approach and recommend tools and methods that would develop good business that respects and conserves biodiversity. Many Indigenous Peoples are maintaining and diversifying the base of their economy and productivity, but they are also one of the groups that suffers the greatest impacts of business without accountability. IPLCs therefore aim to reconcile economy and conservation.

A participant from Australia gave an example from the Wet Tropics World Heritage Site in Australia, which runs alongside the Great Barrier Reef World Heritage Site. There, many businesses depend on nature, there are impacts of business on Indigenous Peoples, and there is a need for new policies and norms. Tourism in the area is a very large industry. Often, tourism guides tell Indigenous Peoples’ stories based on what they read online, so Indigenous Peoples do

⁶ An example of communitarian business: <https://www.ccmss.org.mx/wp-content/uploads/The-community-as-Entrepreneurial-firm.pdf>.

not have the opportunity to tell their own stories, for example about medicinal plants in the Daintree National Park. Yet it is Indigenous Peoples who know the value of those plants. Many tourist operators still hold permits that were issued by the Queensland Parks and Wildlife Service 20 years ago, but the operators do not engage with traditional owners at any stage, so no benefits flow to Indigenous communities from tourist operations. Similarly in Queensland, a foreign company took Indigenous traditional owners' intellectual property about a medicinal plant, which then became a long legal case. In the meantime, the traditional owners cannot use the name of the plant to sell their products, and therefore cannot continue their small cottage industry based on their traditional practices. She noted that Indigenous Peoples need to be assertive about how they approach and look after intellectual property on plants. They also need to push to tell their own stories about sacred sites, creation, totems and about Indigenous Peoples and their significance in the rainforest. They also need to limit access to sacred sites. Part of a new joint management agreement on the Daintree National Park involved developing a protocol that Indigenous Peoples expect outsiders to follow, which they are now disseminating to researchers and tour operators. However, not all Indigenous Peoples can do this. The impacts discussed above may not damage biodiversity, but they have an impact on Aboriginal people who are traditional owners of that area. They are stifled by not being engaged, and as a result they do not receive benefits from business based on biodiversity. Many do not know how to find a way forward.

A participant from Uganda explained that for IPLCs it can be critical to receive better support for small, community-led businesses. There is a critical role for NGOs in supporting communities, and giving a voice to Indigenous communities so that they can market their products to different stakeholders. It is a challenge for Indigenous Peoples to take their products to the right markets, and there is a need for capacity-building around marketing skills. Communities also need support so they can still market their products despite the challenges experienced due to the COVID-19 pandemic. Many Indigenous Peoples would also benefit from learning from other Indigenous communities who have marketed their products, to improve their business ventures. Methods and interventions should build on existing capacities of Indigenous organizations that are supporting Indigenous communities in building their business aspects. Governments could also support Indigenous Peoples with policies that enable Indigenous Peoples to utilize and market their products. These policies should also prevent Indigenous Peoples' products from being undermined, as a key challenge is a lack of copyright or intellectual property rights on these products. Currently, an outsider can visit a local market, buy a product and then duplicate it, and Indigenous Peoples have no recourse due to complicated bureaucracy around registration of intellectual property rights, so people from other countries can claim an Indigenous product as their own. She noted that communities also need to partner with international organizations who can help with marketing Indigenous items, and they need links with the World Intellectual Property Organisation (WIPO) to try to make sure copyrights on Indigenous knowledge and

products are protected. Capacity-building on copyright ownership is critical. Financial support is also needed to build the capacity base.

A participant from the Philippines noted that support for IPLC enterprises is crucial. There are already some Indigenous trademarks, for example Saami in Scandinavia have a trademark to show that a product is made directly by Indigenous Peoples.

Participants also highlighted the need for support for community enterprises. Support could be given around registration and enabling conditions to make community enterprises work better. On financing, even small funds directed at communities can lead to impressive results. These considerations could also be included in the assessment.

A participant from Nigeria highlighted that every IPLC community requires strong community organization. When outside organizations come into a community and carry all the work, there is often a problem with sustainability. Therefore, there is a need for community buy-in, and community organizations need to be picked up and taken along as part of a capacity-building process so that projects and enterprises are sustainable. Community dedication to using the projects and taking them forward is key.

Participants also noted that there are a number of community initiatives and cases building on cultural values and biodiversity, for example setting up museums, arts and culture, dances and song, which can also be a basis for building their own community business initiatives, e.g., community traditional holistic methods of controlling pests that reduce ecosystem impacts. There are also examples of agroecology that are now being recognized by governments, e.g., making fertilizers from droppings of livestock.

A participant from Uganda noted that for IPLCs, their businesses not only depend on nature, but nature can also depend on IPLC enterprises. In terms of dependencies on nature, many Indigenous Peoples work along with and try to enhance nature, so that animals and other species continue producing for Indigenous use. In Uganda, communities produce animal products from cows and sheep, which can be sold at the market. From trees, they make ornaments and dishes for eating and ceremonies. Indigenous Peoples guard Indigenous species so they can continue to produce these items for the market. Indigenous markets are often in nature. Meanwhile, modern markets outside of communities often also depend on nature, but sometimes the relationship is not a direct relationship.

3.3.2. Ways forward for business and IPLCs

A participant from Mexico noted that the assessment should highlight methods, approaches and proposals for new ways in which business can engage with Indigenous Peoples, with responsibility and respect for standards. Many companies want to do things well, but lack information, knowledge and methods. For example, sometimes businesses consult with only one group in a community, rather than addressing and following the communities' own governance

procedures. This occurred in Oaxaca, where wind energy companies approached just a small group, rather than the Assembly (all the people in a village), which caused conflicts.⁷ There is a challenge and an opportunity to create methods and models for how companies can approach and engage with communities. There is also a right for communities to receive the information that is needed so that they can decide how to proceed.

A participant from Mexico observed that the business sector needs to change its assumptions that environmentalists are bad, and communities need to change their assumption that all business is bad, which comes from many bad experiences, including from mining and dams. Business and environmental ethics need to be reconciled, as business needs to see that nature is the base of all business, either directly or indirectly.

A participant from Australia highlighted that agreements on FPIC, data sharing agreements and research agreements, etc., are key for working with Indigenous Peoples. In the case of traditional owner communities of the Great Barrier Reef, issues such as FPIC, intellectual property rights, photograph permissions, and data collection, use and storage etc. can sometimes be incorporated within one agreement. It is usually very important to Indigenous Peoples to know how their knowledge will be used, so that they can feel more confident that their data is safeguarded from misuse.

A participant from Mexico noted that access and benefit sharing and the Nagoya Protocol could be good examples of how to design projects with Indigenous Peoples. The Nagoya Protocol focuses on genetic resources, but as a model it may be useful, because it takes into consideration customary laws, proposing benefit sharing from the use of genetic resources and/or associated traditional knowledge.

A participant from Mexico recommended that the business and biodiversity assessment could use the concept of “adding value”, which may be better than only “public accountability”, in terms of conceptualizing what business could be aiming for.

The participant from Mexico also noted that to sustain the planet, concerted action is needed not just by individuals, but by private actors and governments. The majority of business is controlled and shaped by a few big international companies, for example palm oil corporations, and they have become a huge force in shaping people and planet.

3.3.3. Restoration

A participant from Mexico recommended that the assessment should also consider restoration. This is very important, especially given the UN Decade of Ecosystem Restoration. Restoration

⁷ This is an example about one Indigenous woman confronting a company regarding the impact of their wind farm: <https://elpais.com/planeta-futuro/2021-09-16/na-lupita-mujer-de-las-nubes-frente-a-las-eolicas.html>.

should be a responsibility of companies, and can be a good opportunity for financing beneficial activities more broadly. The methods to assess this need to be included as a part of the relationship between business and biodiversity.

A participant from Canada highlighted that consideration of restoration is very important, as is properly accounting for the costs of restoration, which is often left to the state and public after business has left an area.

3.3.4. Governments as key actors

A participant from Cameroon recommended that the assessment could explore how governments could ratify different conventions regarding ILK so that Indigenous Peoples benefit from their rights regarding their knowledge. More work is also needed to urge governments to ratify or propose laws against “land grabbing”. In the Central African zone, only one country ratified ILO 169.⁸ Therefore, Indigenous Peoples in many countries cannot benefit from that convention.

A participant from Mexico highlighted that business by governments is also relevant. Governments sometimes promote infrastructure and projects that have impacts on lands and IPLCs, for example the Maya Railway in Mexico, which potentially impacts people and a biosphere reserve. It is proposed by the government, but business is also involved as companies will build the railway. Government companies are critical because they sometimes do not respect rules, laws or standards. The assessment could therefore explore methods to assess decisions made by governments regarding business and biodiversity relationships, or the lack of these methods and the need for them.

A participant from Antigua noted that many local people are trying to be proactive, look ahead and see risks coming, but often governments do not seem receptive. The assessment could explore social accountability rules for when governments break legislation and prioritize economics over environmental protection and management, and where local people are not included in decision-making. This is an issue in the Caribbean even with the Escazú agreement (the Regional Agreement on Access to Information, Public Participation and Justice in Environmental Matters in Latin America and the Caribbean) in place. After the COVID-19 pandemic, many governments want to diversify their economies, and sometimes they undertake developments in protected areas and Ramsar sites, thereby greatly weakening the islands’ natural defenses to storms and hurricanes. This is also causing many conflicts. Tools are therefore

⁸ International Labor Organization, Indigenous and Tribal Peoples Convention, 1989 (No. 169), https://www.ilo.org/dyn/normlex/en/f?p=NORMLEXPUB:12100:0::NO::P12100_ILO_CODE:C169

needed to hold governments accountable. Often, in order for action to be taken by governments or donors, IPLCs have to provide proof of harm, so they have to wait until impacts happen, rather than taking action in advance. However, many communities are petitioning governments to reassess special economic zones and protected areas, so the islands are not at risk during hurricanes and storms. Roles and responsibilities will have to change due to the environmental crisis. Communities are sounding the alarm and looking ahead.

A participant from Mexico noted that it is important to provide clarity of what is meant by “government”, e.g., sometimes international banks establish rules for the finance sector. There are also some international organizations or banks in which national or local governments are members, and they must follow their rules (such as TMEC, the Mexico-United States-Canada Treaty, which has environmental regulations).

3.4. IPLC participation and methods in the assessment process

3.4.1. IPLC engagement in the business and biodiversity assessment

Participants highlighted that many Indigenous Peoples would like to make contributions to the assessment. Indigenous participants asked how examples can be submitted through the planned call for contributions.

A participant from Antigua also noted that if case studies are needed for the assessment, IPLCs could produce documents and case studies.

It was agreed that the call for contributions for the new IPBES assessments in 2023 will include the business and biodiversity assessment, and that case studies and other information can be submitted through this process.

4. Next steps

The following next steps took place:

- The IPBES TSU on ILK organized follow-up calls and email discussions, where needed, for participants who did not have enough time during the workshop or who could not be heard due to connection problems.
- The IPBES TSU on ILK drafted comments from the dialogue for the external review process of the scoping report. The comments were sent to all participants for their edits and additions as part of FPIC procedures. After some edits, and as there were no objections, the comments were submitted through the external review process on 10 December 2021.
- The TSU also drafted a report from the dialogue workshop (this report), which was sent to participants for review and comments, as part of FPIC procedures. Following edits and approval, it was made publicly available.
- Participants were invited to personally participate in the external review for the business and biodiversity assessment draft scoping report, which ran until 12 December 2021. Participants were invited to contact the IPBES TSU on ILK for any assistance.

Annex 1: Agenda

Agenda for 22 and 24 November 2021		
Hour	Duration	Activity
1 st hour	15 mins	Opening, Welcome and introductions
	5 mins	Agenda, Objectives of the workshop, FPIC, IPBES and ILK
	5 mins	Introduction to the business and biodiversity assessment
	5 mins	Questions
	10 mins	Presentation of chapters 1,2, 3 and 4 in the scoping report
	20 mins	Discussion on chapters 1, 2, 3 and 4 • In what ways does business depend on nature? • What are the impacts of business on nature and IPLCs? • Do IPLCs measure business impacts? How would they do this? • What would IPLCs propose as important considerations when measuring impacts? • What role could IPLCs play in monitoring impacts?
2 nd hour	10 mins	Presentation of chapters 5 and 6 in the scoping report
	20 mins	Discussion on chapters 5 and 6 • Are IPLCs engaging in/with business? How? • What are the benefits and risks? • What can business do to improve its interactions with IPLCs and nature? (e.g., respecting FPIC, ceasing operations...) • What can governments do to improve interactions between business and IPLCs/nature? • What can IPLCs do to improve their interactions with business/reduce negative impacts? • How can IPLCs influence the broader social, legal and political context in which business operates?
	30 mins	IPLC caucus
3 rd hour	5 mins	Break
	30 mins	Report back from caucus / discussion
	10 mins	Discussion continued: • How could the assessment be useful for IPLCs? • Are there any concerns? • Recommendations of resources or people/organisations to participate?
	5 mins	Discussion: Feedback on the workshop
	10 mins	Next steps (follow up, review comments, future steps) and closing

Annex 2: FPIC document

Free Prior Informed Consent (FPIC) principles for sharing of knowledge during the Indigenous and local knowledge dialogue workshop for the IPBES assessment of business and biodiversity

Online, 22 and 24 November 2021

The individuals whose names are listed at the end of this document in annex 3 agreed during the dialogue workshop to follow the principles and steps laid out in this document.

Background

Within the framework of the UN Declaration on the Rights of Indigenous Peoples (UNDRIP), principles of Free Prior Informed Consent (FPIC) apply to research or knowledge-related interactions between Indigenous Peoples and outsiders (including researchers, scientists, journalists, etc.). Given that the dialogue process includes discussion of Indigenous knowledge of biodiversity and ecosystems, there may be information which the knowledge holders or their organizations or respective communities consider sensitive, private, or holding value for themselves which they do not want to share in the public domain through publications or other media without formal consent.

Objectives of the workshop

For IPBES, the objective of the workshop is to learn from participants about their perspectives, experiences and knowledge around business and biodiversity. The aim is to gather a series of recommendations for the draft of the scoping report, which will be entered into the report's review process and used to inform its further development. If participants agree, a report of the dialogue workshop may also be developed to serve as a record of the discussions. Other results may include case studies that illustrate assessment themes.

It is hoped that the workshop will provide an opportunity for all participants to learn more about IPBES and the assessment, and to reflect and learn from one another about how Indigenous and local knowledge can inform and influence environmental decision-making.

Principles

The dialogue will be built on equal sharing and joint learning across knowledge systems and cultures. The aim is to create an environment where people feel comfortable and able to speak on equal terms, which is an important precondition for true dialogue.

To achieve these aims, the following goals are emphasized:

- Equality of all participants and absence of coercive influence
- Listening with empathy and seeking to understand each other's viewpoints
- Accurate and empathetic communication
- Bringing assumptions into the open

If participants feel that the above goals are not being achieved at any point during IPBES activities, participants are asked to bring this to the attention of the organizers of the activity, or the IPBES technical support unit on ILK, at: ilk.tsu.ipbes@unesco.org.

Sharing knowledge and respecting FPIC

To ensure that knowledge is shared in appropriate ways during dialogue workshops and other IPBES activities, and that information and materials produced after these activities are used in ways that respect FPIC, we propose the following:

1. Guardianship – participants who represent organizations and communities

- Principles of guardianship will be discussed with IPLC participants at the beginning of IPBES activities.
- Participants who represent organizations or communities will act as the guardians of the use of the knowledge and materials from their respective organizations or communities that is shared before, during or after the workshop. Any use of their organizations' or communities' knowledge will be discussed and approved by the guardians, as legitimate representatives of their organizations or communities. Guardians are expected to contact their respective organizations and communities when they need advice. Guardians are also expected to seek consent from their organizations or communities when they consider that this is required, keeping in mind that sharing details of their community's knowledge can potentially have negative consequences, for example sharing the locations and uses of medicinal plants.

2. FPIC rights during dialogue workshops and other activities

- The FPIC rights of the Indigenous Peoples participating in dialogue workshops or other activities will be discussed prior to the beginning of the activity, until participants feel comfortable and well informed about their rights and the process, including the eventual planned use and distribution of information. This discussion may be revisited during the activity, and will be revisited at the end of dialogue workshops once participants have engaged in the dialogue process.
- Participants do not have to answer any questions that they do not want to answer, and do not need to participate in any part of an activity in which they do not wish to participate;
- At any point, any participant can decide that they do not want particular information to be documented or shared outside of the activity. Participants will inform organizers and other participants of this. Organizers and participants will ensure that the information is not recorded. Participants can also request that the information is only recorded as a general statement attributed to a region or country, rather than to a specific community.
- Permission for photographs must be agreed prior to photos being taken and participants have the right not to be photographed. Organizers will take note of this.

3. After the activity

- Permission will be obtained before any photograph of a participant is used or distributed in any form.
- Permission will be obtained before any list of participants is used or distributed in any form.
- Participants maintain intellectual property rights over all information collected from them about themselves or their communities, including photographs. Their intellectual property rights should be protected, pursuant to applicable laws.
- Copies of all information collected will be provided to the participants for approval.
- Any materials developed for IPBES assessments or other products using information provided by participants will be shared with the participants for prior approval and consent.
- The information collected during the activity will not be used for any purposes other than those for which consent has been granted, unless permission is sought and given by participants.
- Participants can decline to consent or withdraw their knowledge or information from the process at any time, and records of that information will be deleted if requested by the participant. Participants should however be aware that once an assessment is published it cannot be changed, and information incorporated into the assessment cannot therefore be withdrawn from the assessment after this point.
- Participants should have the opportunity of reviewing and commenting upon the final product during the draft review period, bearing in mind that responsibility for the final product rests exclusively with the authors.

The participants of the workshop, listed below in Annex 3, agreed to follow the principles and steps laid out in this FPIC document.

Annex 3: Participants

Indigenous Peoples and Local Communities		
Emmanuel Agbose Bem	Nigeria	Association of Women in Agriculture in Nigeria
Aliou Bouba	Cameroon	Mbororo, IPGFforSD, MBOSCUDA and ADJEMA
Jocelyn (Joji) Cariño	Philippines	Forest Peoples Programme / Centres of Distinction on Indigenous and Local Knowledge / IPBES ILK task force
Vanessa Corunna	Australia	Associate lecturer, Center for Aboriginal Studies, Curtin University
Florence Daguitan	Philippines	Tebtebba, Philippines
Chrissy Grant	Australia	Jabalbina Yalanji Aboriginal Corporation
Guadalupe Yesenia Hernández Márquez	Mexico	ILK focal point for IPBES in Mexico
Kamal Kumar Rai	Nepal	Society for Wetland Biodiversity Conservation / IPBES ILK task force
Hannah Longole	Uganda	Executive director of Ateker Cultural Center
Sherry Pictou	Canada	Schulich School of Law, Dalhousie University / IPBES ILK task force
Ruth Spencer	Antigua	Coordinator - Training, outreach and resource mobilization of the Freetown Community Group/Caribbean Marine Managed Areas Network

The IPBES business and biodiversity assessment		
Kate Braumann	USA	University of Minnesota Institute on the Environment
Paulina Kalunda	Uganda	Environmental Conservation Trust of Uganda
Pam McElwee	USA	School of Environmental and Biological Sciences at Rutgers
Valerie Nelson	United Kingdom	University of Greenwich
Giuseppe Nerilli	Italy	Italian Agency for Development Cooperation (AICS)
Asha Rajvanshi	India	Wildlife Institute of India

IPBES		
Ana María Hernández	Colombia	IPBES Chair / Co-chair of the IPBES task force on ILK
Adriana Flores	Mexico	Co-chair of the IPBES task force on ILK
Judy Fisher	Australia	IPBES Task Force on ILK / IPBES Multidisciplinary Expert Panel member
Peter Bates	United Kingdom	IPBES TSU on ILK
Joseph Karanja	Kenya	IPBES TSU on ILK
Bonnie Myers	USA	IPBES Programme Management Officer

